

Chapter 6

Judicial precedent in practice

1. London Street Tramways (1898) established that the House of Lords was:

- A) **Bound by its own past decisions** B)
 - Bound only by Parliament
 - C) Free to change decisions anytime
 - D) Guided by public opinion
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2. The Practice Statement of 1966 allowed the Lords to depart from earlier decisions:

- A) Whenever they wished
 - B) **When justice or legal development required it**
 - C) Only if Parliament requested
 - D) Only with a full bench
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3. The Practice Statement aimed to balance:

- A) Freedom and equality
 - B) Legislation and custom
 - C) **Certainty and flexibility in the law**
 - D) Civil and criminal procedure
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4. The first use of the Practice Statement came in:

- A) Miliangos v George Frank
 - B) Austin v Southwark
 - C) Shivpuri
 - D) **Herrington v BRB (1972)**
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5. In Miliangos (1976), the Lords changed the law to allow:

- A) **Judgments in foreign currencies**
 - B) Cross-border negligence claims
 - C) Free appeals to JCPC
 - D) Damages in equity only
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6. Shivpuri (1986) demonstrated that:

- A) HL never changes criminal law
 - B) **The Lords can correct their own mistakes swiftly**
 - C) ECtHR overrides HL
 - D) Attempt laws are fixed by Parliament
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7. The Supreme Court inherited the Practice Statement:

- A) Through a new Act
 - B) Automatically when it replaced the Lords in 2009
 - C) **Automatically when it replaced the Lords in 2009**
 - D) By judicial vote
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8. Austin v Southwark (2010) confirmed that the Supreme Court:

- A) Must follow all ECtHR rulings
 - B) Cannot overrule HL precedents
 - C) Needs ministerial approval to depart
 - D) **Can depart from its past decisions like the former House of Lords**
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9. Willers v Joyce (2016) clarified the status of:

- A) **Privy Council decisions in domestic precedent**
 - B) Court of Appeal judgments
 - C) EU court influence
 - D) County Court practice
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10. In Willers v Joyce (No 2), the Supreme Court held that:

- A) All JCPC decisions are binding
- B) **JCPC decisions bind if the Supreme Court expressly directs**
- C) JCPC has no value

D) JCPC can overrule SC

11. A per incuriam decision means a case decided:

- A) Unfairly
 - B) After new evidence
 - C) Under public pressure
 - D) **In ignorance of relevant law or authority**
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12. Young v Bristol Aeroplane (1944) established that the Court of Appeal:

- A) Can always overrule itself
 - B) **Is normally bound by its own past decisions with three exceptions**
 - C) Is not bound by Supreme Court
 - D) Must follow Strasbourg
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13. The Young exceptions apply when:

- A) Judges disagree personally
 - B) Parliament changes the law
 - C) **There are conflicting CA decisions, a later SC decision, or a per incuriam ruling**
 - D) Lower courts appeal
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14. In Davis v Johnson (1979), Lord Denning argued that:

- A) CA can ignore HL
 - B) Strasbourg outranks HL
 - C) CA is supreme
 - D) **CA may disregard HL precedent per incuriam**
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15. Broome v Cassell (1972) reaffirmed that:

- A) **The CA cannot overrule the House of Lords**
 - B) CA may innovate freely
 - C) HL follows ECtHR
 - D) Statutes override HL
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16. R v Gould (1968) concerned:

- A) Civil contract law
 - B) **Liberty of the subject in criminal precedent**
 - C) Judicial review
 - D) Judicial immunity
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17. Divisional Courts follow:

- A) Crown Court only
 - B) ECtHR decisions
 - C) Only the CA
 - D) **Both Supreme Court and Court of Appeal**
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18. Divisional Courts may depart from their own rulings:

- A) Always
 - B) **Only under Young exceptions**
 - C) With SC consent
 - D) By public demand
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19. Ullah (2004) principle under HRA 1998 requires:

- A) Ignoring ECtHR law
 - B) Treating ECtHR as supreme
 - C) Referring every case to Strasbourg
 - D) **Following clear Strasbourg precedent unless exceptional reasons exist**
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20. Horncastle (2009) shows that domestic courts may:

- A) Never question Strasbourg
 - B) Overrule HL
 - C) Reject all hearsay evidence
 - D) **Decline ECtHR rulings if domestic law better protects rights**
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21. Pinnock (2010) confirmed that UK courts:

- A) **Must take Strasbourg judgments into account under section 2 HRA**
- B) Must follow ECtHR always
- C) Can ignore ECtHR completely

D) Must apply EU law

22. Chester (2013) and Hallam (2019) established that:

- A) Strasbourg controls UK law
 - B) **Supreme Court may refuse Strasbourg when it conflicts with democratic principle**
 - C) Strasbourg binds Parliament
 - D) Rights Act repealed
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23. The Privy Council is generally:

- A) Irrelevant in English law
 - B) Subordinate to CA
 - C) Equal to SC
 - D) **Persuasive, not binding, unless SC directs otherwise**
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24. The High Court must follow:

- A) **Supreme Court and Court of Appeal**
 - B) JCPC
 - C) Magistrates
 - D) Crown Court
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25. High Court judges treat each other's rulings as:

- A) Binding
 - B) Inferior
 - C) Optional
 - D) **Persuasive only**
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26. The Crown Court is bound by:

- A) Itself
- B) **Higher courts but not its own past decisions**
- C) Magistrates
- D) JCPC

27. Magistrates' Courts follow:

- A) Crown Court
- B) **All higher courts**
- C) High Court only
- D) JCPC

28. Per incuriam rulings are important because they:

- A) Encourage flexibility
- B) Prevent repetition of clear legal mistakes
- C) **Prevent repetition of clear legal mistakes**
- D) Apply only to ECtHR

29. Denning's "lapsed rule" theory argued that:

- A) CA equals SC
- B) Obsolete precedents should fade with social change
- C) ECtHR decides expiry
- D) **Obsolete precedents should fade with social change**

30. "Implied overruling" occurs when:

- A) Parliament intervenes
- B) **A later higher decision conflicts with an earlier one**
- C) Statutes are repealed
- D) New evidence arises

31. The key purpose of stare decisis is:

- A) Political stability
- B) Legal certainty and equality
- C) **Legal certainty and equality**
- D) Economic reform

32. Spectrum Plus (2005) discussed:

- A) Overruling statute

- B) **Prospective overruling to protect reliance interests**
 - C) ECtHR conflict
 - D) Company law immunity
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33. The Court of Appeal (Civil Division) may depart from itself if:

- A) SC disagrees
 - B) One of the Young exceptions applies
 - C) **One of the Young exceptions applies**
 - D) A single judge objects
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34. Kay v Lambeth (2006) confirmed:

- A) Strasbourg is binding
 - B) Domestic precedent takes priority over Strasbourg rulings
 - C) Denning restored
 - D) **Domestic precedent takes priority over Strasbourg rulings**
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35. Pinnock (2010) later refined Kay by:

- A) Rejecting Strasbourg
 - B) **Requiring courts to take account of ECtHR judgments**
 - C) Enforcing Strasbourg strictly
 - D) Ignoring domestic precedent
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36. Chester (2013) involved:

- A) Trespass
 - B) Prisoner voting and sovereignty conflict
 - C) **Prisoner voting and sovereignty conflict**
 - D) Negligence
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37. Hallam (2019) reaffirmed that:

- A) **Domestic constitutional principles may outweigh Strasbourg rulings**
- B) Domestic constitutional principles may outweigh Strasbourg rulings

C) Strasbourg binds UK law

D) Courts must mirror EU

38. The hierarchy of precedent ensures:

A) Judicial discretion

B) Lower courts follow higher decisions

C) **Lower courts follow higher decisions**

D) Equal legislative power

39. The Supreme Court's role in precedent is to:

A) Obey Parliament

B) **Balance stability and justice through limited overruling**

C) Balance stability and justice through limited

D) D) Rely on public polls

40. Addie v Dumbreck (1929) denied liability because:

A) Child injured

B) No duty owed to trespassers

C) **No duty owed to trespassers**

D) Consent defence applied

41. Herrington replaced Addie due to:

A) **Changed moral and social conditions**

B) Changed moral and social conditions

C) Economic law

D) ECtHR mandate

42. Jones v SS for SS (1972) showed that:

A) HL can ignore ECtHR

B) Lower courts must obey HL even if wrong

C) **Lower courts must obey HL even if wrong**

D) Denning was correct

43. R v Simpson (2003) reaffirmed that CA (Criminal):

- A) Bound forever
- B) May depart when fairness demands
- C) Never flexible
- D) **May depart when fairness demands**

44. The Divisional Court is also known as:

- A) Crown Court
- B) High Court sitting with two or more judges
- C) **High Court sitting with two or more judges**
- D) County tribunal

45. Practice Statement 1966 was issued by:

- A) **Lord Gardiner LC on behalf of the House of Lords**
- B) Parliament
- C) CA Civil Division
- D) Privy Council

46. The core of Chapter 6 is the study of:

- A) Criminal evidence
- B) How precedent operates within the court hierarchy
- C) **How precedent operates within the court hierarchy**
- D) EU supremacy

47. Hallam and Chester reflect the tension between:

- A) Courts and media **Domestic sovereignty and Strasbourg influence**
- B) Domestic sovereignty and Strasbourg influence
- C) Courts and media
- D) Politics and tort

48. Willers v Joyce clarifies JCP authority under:

- A) EU law

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- B) Domestic hierarchy through SC control
 - C) **Domestic hierarchy through SC control**
 - D) United Nations Charter

49. A decision overruled means:

- A) Appeal denied
- B) **Higher court replaces earlier rule**
- C) Higher court replaces earlier rule
- D) Jury reversed verdict

50. The goal of precedent in modern law is to:

- A) Freeze rules
- B) Avoid reform
- C) Combine certainty, fairness, and adaptability
- D) **Combine certainty, fairness, and adaptability**

Judicial Precedent - 50 Multiple Choice Questions

1. The 1966 Practice Statement applies to the Supreme Court because:

- A) Parliament codified it
- B) The Cabinet approved it
- C) The Supreme Court inherited HL judicial powers without interruption
- D) It was reissued in 2009

Correct Answer: C

2. In *Austin v Southwark* (2010), Lord Hope confirmed that:

- A) Only Parliament can change precedent
- B) SC lost power to depart
- C) ECtHR approval is required
- D) The Practice Statement remains available to the SC for justice and legal development

Correct Answer: D

3. *Willers v Joyce* (2016) created tension because:

- A) It blurred lines between binding and persuasive authority
- B) It abolished Young exceptions
- C) JCPC claimed supremacy
- D) It repealed HRA 1998

Correct Answer: A

4. *Herrington v BRB* demonstrates that:

- A) Courts reject fairness
- B) Social policy may justify departure from rigid precedent
- C) Economic law controls precedent
- D) Moral change is irrelevant

Correct Answer: B

5. Miliangos showed that the Lords could:

- A) Reaffirm old rules
- B) Follow ECtHR
- C) Adjust precedent for international commerce without waiting for Parliament
- D) Delay overruling

Correct Answer: C

6. Shivpuri (1986) highlighted that:

- A) Criminal law is inflexible
- B) Parliament authorizes all change
- C) Errors must persist for certainty
- D) Even criminal precedent may be reversed to correct clear error

Correct Answer: D

7. Young v Bristol Aeroplane is crucial because it:

- A) Defines when the CA may depart from itself while maintaining order
- B) Authorizes JCPC binding
- C) Limits CA freedom
- D) Expands horizontal precedent

Correct Answer: A

8. The Young rule applies to:

- A) Supreme Court
- B) Magistrates' Courts
- C) Only civil CA
- D) Civil and Divisional Courts, but not Criminal CA fully

Correct Answer: D

9. In Davis v Johnson, the Lords warned that:

- A) CA may reform law freely
- B) Denning's refusal to follow HL precedent was unconstitutional
- C) ECtHR precedents dominate
- D) Judicial dissent is binding

Correct Answer: B

10. The principle in Broome v Cassell reasserted:

- A) Judicial creativity
- B) Fairness outweighs authority
- C) The constitutional hierarchy of courts must be preserved
- D) Strasbourg's role

Correct Answer: C

11. R v Gould (1968) represents:

- A) ECtHR control of liberty
- B) Statutory immunity
- C) Liberty irrelevant in precedent
- D) Justice exceptions in criminal CA allowing departure for fairness

Correct Answer: D

12. The Divisional Court applies Young exceptions because:

- A) It equals SC
- B) It hears jury trials
- C) It functions as an appellate body with similar need for consistency
- D) It's below Magistrates

Correct Answer: C

13. Ullah (2004) established that UK courts must:

- A) Follow clear ECtHR authority unless exceptional justification exists
- B) Ignore ECtHR
- C) Apply Strasbourg directly
- D) Ask Parliament to intervene

Correct Answer: A

14. Horncastle (2009) modified Ullah by holding:

- A) Strasbourg always correct
- B) CA bound by Strasbourg
- C) Strasbourg unenforceable
- D) Domestic courts may refuse ECtHR rulings where national law better protects rights

Correct Answer: D

15. Pinnock (2010) later ruled that:

- A) Strasbourg binding
- B) Courts must "take account" of Strasbourg but not necessarily follow it
- C) Strasbourg irrelevant
- D) Parliament superior

Correct Answer: B

16. Chester (2013) and Hallam (2019) reflect:

- A) ECtHR overrides Parliament
- B) Judicial independence within constitutional dialogue
- C) Total rejection of ECtHR

- D) Strasbourg supremacy

Correct Answer: B

17. Kay v Lambeth (2006) confirmed that:

- A) ECtHR binds CA
- B) Strasbourg equals SC
- C) Lower courts must follow domestic precedent even if ECtHR differs
- D) Strasbourg trumps HL

Correct Answer: C

18. The per incuriam principle allows courts to:

- A) Deny appeal
- B) Disregard precedents made in ignorance of key law
- C) Overrule Parliament
- D) Ignore facts

Correct Answer: B

19. Denning's "lapsed rule" view was rejected because:

- A) It required ECtHR approval
- B) It abolished precedent
- C) It was statutory
- D) It threatened certainty and hierarchy

Correct Answer: D

20. Practice Statement 1966 is constitutionally justified by:

- A) Judicial responsibility to maintain fairness and consistency
- B) Parliamentary control
- C) Cabinet order

- D) ECtHR regulation

Correct Answer: A

21. Miliangos illustrated judicial realism, meaning:

- A) Judicial politics
- B) Courts adapt precedent to modern realities
- C) Ignoring old law
- D) ECtHR influence

Correct Answer: B

22. Spectrum Plus (2005) discussed:

- A) Criminal liability
- B) Strasbourg impact
- C) Retroactive justice
- D) When overruling may take effect prospectively to protect reliance

Correct Answer: D

23. The Court of Appeal (Criminal Division) differs from Civil because:

- A) May depart more freely where liberty demands
- B) Bound identically
- C) Follows Strasbourg only
- D) Cannot cite HL

Correct Answer: A

24. R v Simpson (2003) followed Gould by holding that:

- A) CA must always follow
- B) ECtHR decides fairness
- C) Fairness may require departure from previous CA rulings

- D) HL approves every case

Correct Answer: C

25. "Implied overruling" happens when:

- A) Parliament repeals law
- B) Minister issues order
- C) A later SC case conflicts irreconcilably with earlier precedent
- D) ECtHR intervenes

Correct Answer: C

26. The Divisional Court cannot overrule CA because:

- A) ECtHR controls it
- B) Same level
- C) Independent authority
- D) Lower in hierarchy

Correct Answer: D

27. Jones v SS for SS (1972) reasserted that:

- A) Strasbourg replaces HL
- B) Lower courts must follow HL even if considered wrong
- C) CA equals HL
- D) Denning correct

Correct Answer: B

28. Herrington and Miliangos together show:

- A) ECtHR supremacy
- B) Decline of PS
- C) Responsible judicial innovation within controlled limits

- D) Arbitrary overruling

Correct Answer: C

29. The core rationale of stare decisis is:

- A) Political order
- B) Judicial supremacy
- C) Equality, predictability, and restraint
- D) Speed of justice

Correct Answer: C

30. R v Kneller (1973) highlighted:

- A) Liberty focus
- B) ECtHR guidance
- C) Readiness to overrule
- D) Reluctance to depart even from doubtful precedent for stability

Correct Answer: D

31. In Hall v Simons (2000), the Lords:

- A) Deferred to Parliament
- B) Abolished immunity, showing flexibility of precedent
- C) Reaffirmed advocate immunity
- D) Ignored precedent

Correct Answer: B

32. The Supreme Court's legitimacy in overruling lies in:

- A) Ministerial oversight
- B) Political neutrality
- C) Popular approval

- D) Transparent reasoning and minimal disruption

Correct Answer: D

33. "Horizontal precedent" means:

- A) Ignoring hierarchy
- B) Following past decisions of the same court
- C) Following higher courts
- D) Applying Strasbourg law

Correct Answer: B

34. "Vertical precedent" refers to:

- A) Advisory rulings
- B) International comity
- C) Lower courts following higher ones
- D) Equal courts

Correct Answer: C

35. Practice Statement 1966 was used in criminal law first in:

- A) Miliangos
- B) Shivpuri (1986)
- C) Kay v Lambeth
- D) Austin

Correct Answer: B

36. The constitutional strength of precedent comes from:

- A) Statutory silence
- B) Political control
- C) Judicial self-discipline under rule of law

- D) Ministerial authority

Correct Answer: C

37. The Privy Council's persuasive value depends on:

- A) Ministerial citation
- B) Its location
- C) Whether the issue overlaps with UK law and SC composition
- D) Statutory reference

Correct Answer: C

38. Willers v Joyce dual rulings caused confusion because:

- A) Two panels conflicted
- B) HL precedent missing
- C) JCPC and SC issued different conclusions on same facts
- D) ECtHR intervened

Correct Answer: C

39. The High Court rarely departs from itself because:

- A) ECtHR forbids
- B) Comity and consistency guide discretion
- C) Law static
- D) Parliament forbids

Correct Answer: B

40. Addie v Dumbreck symbolized:

- A) Statutory negligence
- B) Harsh early fault-based limits on duty
- C) Judicial creativity

- D) ECtHR reasoning

Correct Answer: B

41. Herrington symbolized:

- A) Ministerial reform
- B) Law adapting to moral evolution
- C) Political overruling
- D) Strasbourg dialogue

Correct Answer: B

42. Kay, Pinnock, Chester, and Hallam together show:

- A) CA independence
- B) Denning's victory
- C) A rights-based dialogue between domestic and Strasbourg courts
- D) ECtHR supremacy

Correct Answer: C

43. Jones v SS for SS reaffirmed that:

- A) CA outranks HL
- B) Equality trumps hierarchy
- C) Strasbourg corrects HL
- D) Precedent binds regardless of disagreement

Correct Answer: D

44. Practice Statement 1966 introduced:

- A) Political reform
- B) Denning's theory
- C) Uncontrolled flexibility

- D) Controlled overruling in limited circumstances

Correct Answer: D

45. "Prospective overruling" protects:

- A) ECtHR dialogue
- B) Parliament
- C) Past reliance and fairness after doctrinal change
- D) Ministerial reform

Correct Answer: C

46. The main danger of overruling too freely is:

- A) Human rights violation
- B) Delay in appeals
- C) Loss of certainty and predictability in law
- D) Judicial independence

Correct Answer: C

47. The legitimacy of precedent depends on:

- A) Legislative consent
- B) Consistency, rationality, and transparency
- C) Majority opinion
- D) ECtHR recognition

Correct Answer: B

48. The function of hierarchy is to:

- A) Limit creativity
- B) Reduce workload
- C) Ensure order, clarity, and finality in the judicial system

- D) Enforce politics

Correct Answer: C

49. R v Kneller showed that the HL was:

- A) ECtHR-dependent
- B) Political
- C) Activist
- D) Extremely reluctant to change even a controversial precedent

Correct Answer: D

50. Overall, Chapter 6 teaches that:

- A) Law must remain static
- B) ECtHR dictates all change
- C) Precedent evolves within hierarchy through controlled flexibility
- D) Judges are politicians

Correct Answer: C

END OF QUESTIONS

Judicial Precedent - MCQs 101-150

101. The main value of London Street Tramways (1898) for modern precedent is that it:

- **A) Introduced horizontal precedent**
- **B) Ended CA independence**
- **C) Established absolute self-binding at the highest level before 1966**
- **D) Created ECtHR review**

Correct Answer: C

102. The Practice Statement 1966 was designed to:

- **A) Expand political discretion**
- **B) Restrict all innovation**
- **C) Repeal London Tramways**
- **D) Permit rare departure to correct injustice or adapt to change**

Correct Answer: D

103. The Practice Statement was first used in:

- **A) Herrington v BRB (1972) to update occupiers' liability**
- **B) Shivpuri (1986)**
- **C) Miliangos (1976)**
- **D) Austin (2010)**

Correct Answer: A

104. Miliangos demonstrated that:

- **A) Parliament must modernize currency law**
- **B) The Lords may innovate economically within limits of justice**
- **C) ECtHR governs trade cases**
- **D) Denning's theory succeeded**

Correct Answer: B

105. Shivpuri (1986) showed that precedent can evolve:

- A) Only by statute
- B) Via ECtHR intervention
- C) Through self-correction when clear error threatens coherence
- D) Through jury verdicts

Correct Answer: C

106. The Supreme Court's legitimacy in using the Practice Statement depends on:

- A) Ministerial consent
- B) ECtHR oversight
- C) Parliament's vote
- D) Maintaining rule-of-law values of certainty, fairness, and clarity

Correct Answer: D

107. Austin v Southwark (2010) reaffirmed:

- A) The Supreme Court inherited the same flexibility as the former HL
- B) Denning's theories
- C) The PS was repealed
- D) Strasbourg binds SC

Correct Answer: A

108. Willers v Joyce (2016) illustrated:

- A) EU supremacy
- B) The problem of dual judgments between JCPC and SC creating ambiguity
- C) Pure horizontal precedent
- D) Constitutional irrelevance

Correct Answer: B

109. The JCPC is generally persuasive because:

- A) It serves Commonwealth only
- B) It is above SC
- C) It lacks domestic jurisdiction except when SC expressly confirms binding effect
- D) ECtHR enforces its rulings

Correct Answer: C

110. Willers (No 2) resolved that:

- A) JCPC never binds
- B) CA decides its authority
- C) Parliament must approve
- D) JCPC may bind if expressly directed by SC

Correct Answer: D

111. Young v Bristol Aeroplane remains key because it:

- A) Created precise limits on when CA may overrule itself
- B) Gave CA total flexibility
- C) Introduced horizontal overruling
- D) Abolished hierarchy

Correct Answer: A

112. The Young exceptions are:

- A) Policy, fairness, equity
- B) Conflict, higher decision, or per incuriam
- C) Parliamentary guidance

- D) Public necessity

Correct Answer: B

113. Davis v Johnson reaffirmed that:

- A) ECtHR binds HL
- B) HL followed CA
- C) Denning's refusal to follow HL precedent breached constitutional order
- D) The PS was suspended

Correct Answer: C

114. Broome v Cassell confirmed:

- A) Denning's flexibility
- B) Strasbourg priority
- C) Criminal exceptions
- D) Lower courts must obey HL decisions even if considered wrong

Correct Answer: D

115. R v Gould (1968) recognized that in criminal law:

- A) The CA(Crim) may depart where liberty of the subject demands
- B) Liberty is secondary
- C) ECtHR decides fairness
- D) Juries bind CA

Correct Answer: A

116. The Divisional Court mirrors the CA because:

- A) Equal in hierarchy
- B) It applies the same Young exceptions to preserve consistency
- C) It is above SC

- D) Strasbourg directs it

Correct Answer: B

117. Ullah (2004) created the "mirror principle," meaning:

- A) ECtHR dominates UK law
- B) Parliament mirrors Strasbourg
- C) UK courts should follow clear Strasbourg precedent unless justified otherwise
- D) CA controls HRA

Correct Answer: C

118. Horncastle (2009) marked a shift because:

- A) It ignored Strasbourg
- B) ECtHR binds all
- C) Parliament ruled instead
- D) Domestic courts may refuse Strasbourg rulings to protect national standards

Correct Answer: D

119. Pinnock (2010) balanced Ullah and Horncastle by saying:

- A) Courts must take Strasbourg into account, not follow blindly
- B) Ignore Strasbourg
- C) Apply ECtHR strictly
- D) Parliament decides each conflict

Correct Answer: A

120. Chester (2013) and Hallam (2019) together show:

- A) Strasbourg control
- B) Domestic constitutional principles can outweigh ECtHR precedent

- C) ECtHR supremacy
- D) Judicial surrender

Correct Answer: B

121. Kay v Lambeth (2006) emphasized that:

- A) Strasbourg is supreme
- B) HRA repealed
- C) Lower courts must follow binding domestic precedent even if ECtHR differs
- D) JPC equals ECtHR

Correct Answer: C

122. Per incuriam operates as:

- A) Appeal procedure
- B) Statutory rule
- C) Strasbourg doctrine
- D) Exception for decisions made in ignorance of relevant law

Correct Answer: D

123. Denning's "lapsed rule" theory was rejected because:

- A) It undermined predictability by allowing judges to discard precedent at will
- B) It supported fairness
- C) It harmonized law
- D) It aided Strasbourg

Correct Answer: A

124. The Doctrine of Hierarchy ensures:

- A) Flexibility for all

- **B) Lower courts follow higher ones to secure consistency**
- **C) Only CA binds itself**
- **D) ECtHR leads**

Correct Answer: B

125. Spectrum Plus (2005) explored:

- **A) Abolishing stare decisis**
- **B) Strasbourg alignment**
- **C) Prospective overruling to prevent unfair retroactive impact**
- **D) Criminal appeal reform**

Correct Answer: C

126. R v Kneller (1973) demonstrated:

- **A) Judicial activism**
- **B) Public pressure reforms**
- **C) ECtHR dominance**
- **D) Reluctance to overturn even mistaken precedent for stability**

Correct Answer: D

127. Hall v Simons (2000) modernized law by:

- **A) Abolishing advocates' immunity as inconsistent with fairness**
- **B) Restoring immunity**
- **C) Rejecting PS**
- **D) Overruling Strasbourg**

Correct Answer: A

128. Jones v SS for SS (1972) illustrates:

- **A) Denning's victory**

- B) The hierarchy principle — lower courts must follow even wrong HL rulings
- C) ECtHR enforcement
- D) Statutory repeal

Correct Answer: B

129. "Horizontal precedent" means:

- A) Lower follows higher
- B) JCPC control
- C) A court generally follows its own prior decisions
- D) Political review

Correct Answer: C

130. "Vertical precedent" ensures:

- A) Equal courts differ
- B) ECtHR commands
- C) Juries control appeal
- D) Lower courts follow higher ones in the same hierarchy

Correct Answer: D

131. Practice Statement 1966 transformed stare decisis by:

- A) Introducing limited judicial flexibility to correct injustice
- B) Removing hierarchy
- C) Codifying ECtHR power
- D) Transferring power to CA

Correct Answer: A

132. Miliangos and Shivpuri share that both:

- A) Involved criminal issues

- B) Applied PS to correct outdated or mistaken precedent
- C) Concerned ECtHR rulings
- D) Came from CA

Correct Answer: B

133. The Divisional Court's persuasive impact is important because:

- A) It binds Magistrates
- B) It directs Parliament
- C) Its appellate nature influences consistency across parallel benches
- D) It sets ECtHR standards

Correct Answer: C

134. Ullah principle maintains:

- A) Strasbourg supremacy
- B) Domestic autonomy only
- C) Rejection of HRA
- D) Judicial comity by aligning with ECtHR unless strong reasons exist

Correct Answer: D

135. Horncastle contributed to legal development by:

- A) Reinforcing that national standards can meet or exceed Strasbourg rights
- B) Banning hearsay
- C) Repealing Ullah
- D) Abolishing ECtHR

Correct Answer: A

136. Chester concerned:

- A) Judicial review limits

- B) Prisoner voting and constitutional hierarchy
- C) Trespass reform
- D) CA conflict

Correct Answer: B

137. Hallam built upon Chester by:

- A) Rejecting HRA
- B) Overruling Chester
- C) Confirming that UK courts need not follow Strasbourg against core constitutional values
- D) Adopting ECtHR fully

Correct Answer: C

138. Practice Statement 1966's constitutional importance is that it:

- A) Weakened stare decisis
- B) Ended precedent
- C) Reduced hierarchy
- D) Strengthened legitimacy by combining authority with reasoned evolution

Correct Answer: D

139. The per incuriam rule supports:

- A) Accuracy and accountability by excluding erroneous rulings
- B) Free judicial choice
- C) Political oversight
- D) ECtHR review

Correct Answer: A

140. Denning's "lapsed rule" was criticised because it:

- **A) Favoured fairness**
- **B) Allowed subjective disregard of precedent undermining certainty**
- **C) Upheld hierarchy**
- **D) Respected Parliament**

Correct Answer: B

141. The goal of precedent under rule of law is:

- **A) Speedy change**
- **B) Uniform politics**
- **C) Stability with capacity for rational evolution**
- **D) Strict rigidity**

Correct Answer: C

142. Kay, Pinnock, Chester, and Hallam together display:

- **A) Subservience to Strasbourg**
- **B) Full ECtHR compliance**
- **C) Parliamentary silence**
- **D) Evolving dialogue balancing domestic autonomy and international respect**

Correct Answer: D

143. Hall v Simons illustrated:

- **A) Controlled law-making within legitimacy boundaries**
- **B) Judicial defiance**
- **C) Strasbourg influence**
- **D) HL submission**

Correct Answer: A

144. R v Simpson reinforced that CA(Crim):

- **A) Never departs**
- **B) Can depart if justice and liberty require**
- **C) ECtHR must approve**
- **D) CA(Civ) decides**

Correct Answer: B

145. The HRA 1998 s.2 function in precedent is to:

- **A) Bind UK to ECtHR**
- **B) Enforce Strasbourg law**
- **C) Require courts to consider ECtHR jurisprudence while preserving sovereignty**
- **D) Mandate compliance**

Correct Answer: C

146. The constitutional foundation of hierarchy lies in:

- **A) Judicial activism**
- **B) Political convenience**
- **C) Economic policy**
- **D) Predictability, equality, and respect for authority**

Correct Answer: D

147. The rule of comity in precedent promotes:

- **A) Mutual respect among coordinate courts to maintain coherence**
- **B) Rivalry**
- **C) Obedience to Parliament**
- **D) ECtHR supremacy**

Correct Answer: A

148. Academic criticism of precedent often argues that it:

- **A) Enhances equality**
- **B) Becomes overly technical and restricts moral growth**
- **C) Empowers Parliament**
- **D) Simplifies law**

Correct Answer: B

149. Practice Statement 1966 in constitutional theory represents:

- **A) Judicial arrogance**
- **B) Political surrender**
- **C) Democratic maturity — judges acknowledging need for controlled self-correction**
- **D) Abandonment of law**

Correct Answer: C

150. In conclusion, Chapter 6 demonstrates that:

- **A) Precedent prevents progress**
- **B) ECtHR dominates all**
- **C) Parliament controls case law**
- **D) Judicial precedent sustains the rule of law by combining hierarchy, fairness, and adaptive reasoning**

Correct Answer: D

END OF QUESTIONS